

The M.P. Contingency Fund Act, 1957

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State of Madhya Pradesh - Act

The M.P. Contingency Fund Act, 1957

MADHYA PRADESH

India

The M.P. Contingency Fund Act, 1957

Act 7 of 1957

Published on 23 January 1957

Commenced on 23 January 1957

[This is the version of this document from 23 January 1957.]

[Note: The original publication document is not available and this content could not be verified.]

The M.P. Contingency Fund Act, 1957

Act

No. 7 of 1957

Statement of objects and reasons. - As a result of the reorganisation of States, in Contingency Fund Acts in force in the various integrating units of the new State of Madhya Pradesh ceased to be operative with effect from the 1st November, 1956. It, therefore, became necessary to establish a Contingency Fund for the new State of Madhya Pradesh with effect from that day. Accordingly an Ordinance was promulgated by the Governor for the purpose on the 1st November, 1956. The Ordinance makes provision for establishing out of the Consolidated Fund of the State of Madhya Pradesh a Contingency Fund consisting of two crores of rupees for meeting unforeseen expenditure. It is now proposed to replace this Ordinance by an enactment of the State Legislature. This Bill is designed to achieve this object.

Statement of Objects and Reasons were published : "Madhya Pradesh Gazette", Extraordinary, dated the 12th

December, 1956.

[Dated 23rd January, 1957]

Received the assent of the Governor on the 23rd January, 1957; assent first published in the "Madhya Pradesh Gazette" Extraordinary, on the 25th January, 1957.

An act to provide for the establishment and maintenance of the Contingency Fund of the State of Madhya Pradesh.

Be it enacted by the Madhya Pradesh Legislature in the Seventh Year of the Republic of India as follows :-

1.

Short title and commencement.

(1)

This Act may be cited as The Madhya Pradesh Contingency Fund Act, 1957.

(2)

It shall come into force immediately on its publication in the official Gazette of the State.

2.

Definition.

- In this Act, unless there is any thing repugnant in the subject or context, "the Fund" means the Contingency Fund of the State of Madhya Pradesh established under Section 3.

3.

[Establishment of Contingency Fund.

[Substituted by M.P. Act No. 17 of 1971.]

- There shall be established a Fund in the nature of an imprest entitled "The Contingency Fund of the State of Madhya Pradesh" into which shall be paid from and out of the Consolidated Fund of the State of Madhya Pradesh a sum of [forty crores] of rupees.]

4.

Custody of Fund and withdrawal therefrom.

- The Fund shall be held on behalf of the Governor by the Secretary of Government in the Finance Department, and no advances shall be made out of the Fund, except for the purposes of meeting unforeseen expenditure pending authorisation of such expenditure by the Legislature of the State under appropriation made by Law.

5.

Power to make rules.

- For the purpose of carrying out the objects to this Act, the State Government may make rules regulating all matters connected with or ancillary to the custody of, payment of moneys into, and the withdrawal of money from, the Fund.

6.

Repeal and savings.

(1)

The Madhya Pradesh Contingency Fund Ordinance, 1956 (V of 1956) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under this Act as if this were in force on the date on which such thing was done or action was taken.

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